



Office of Public Affairs
U.S. Department of Justice



Digital Health Company and Medical Practice Indicted in \$100M Adderall Distribution Scheme

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For Immediate Release

Office of Public Affairs

The Digital Health Company Was Also Charged with Health Care Fraud and Obstruction Conspiracies

A federal grand jury in San Francisco returned an indictment yesterday charging a California company for its participation in a years-long scheme to illegally distribute Adderall over the internet, conspire to commit health care fraud in connection with the submission of false and fraudulent claims for reimbursement for Adderall and other stimulants, and conspire to obstruct justice. A Florida medical practice was also charged in connection with its alleged participation in the scheme to illegally distribute Adderall.

"As alleged, Done Global used lies and deceit to carry out a sophisticated and wide-ranging telehealth fraud scheme, obtaining over \$100 million in the process," said Acting Assistant Attorney General Matthew R. Galeotti of the Justice Department's Criminal Division. "From feeding addiction to stealing public funds, rampant health care fraud victimizes our citizens and must be stopped. The Criminal Division will not hesitate to hold health care companies that defraud Americans accountable for their crimes."

"Done Global betrayed the public trust by allegedly exploiting a subscription-based program to flood the country with Adderall, a powerful and highly regulated controlled substance," said Assistant Administrator Cheri Oz of the Drug Enforcement Administration (DEA) Diversion Control Division. "By distributing over 40 million Adderall pills for non-legitimate medical purposes, they prioritized profit over patient safety and public health. Controlled substances are not commodities to be marketed through memberships — they are medications that require careful oversight to prevent misuse and diversion. DEA remains steadfast in its commitment to hold registrants accountable."

"Yesterday, we charged defendants with exploiting telehealth to provide unfettered access to over 40 million Adderall pills. Instead of leveraging technology to improve patient access to care and enhance communications, Done Global saw it as a way to boost profit. We will vigorously pursue companies that engage in this kind of fraud and put patients at risk," said U.S. Attorney Craig H. Missakian for the Northern District of California.

"Prescribing controlled substances without proper medical oversight, as alleged, endangers patients and erodes trust in our health care system," said Deputy Inspector General for Investigations Christian J. Schrank of the U.S. Department of Health and Human Services, Office of Inspector General (HHS-OIG). "Running a sham operation to exploit federal programs and funnel taxpayer dollars into unlawful stimulant distribution is a blatant abuse. HHS-OIG will continue to work with our law enforcement partners to expose and dismantle schemes that threaten public safety and defraud the American people."

"IRS Criminal Investigation special agents are specially equipped to follow the complex financial trail left by criminals, and we are dedicated to holding those accountable for crimes committed," said Special Agent in Charge Harry T. Chavis of IRS Criminal Investigation New York. "This was a brazen scheme of staggering proportions while also putting individual lives at risk. Yesterday's indictment sends a clear message that we remain vigilant and will vigorously pursue those who attempt to enrich themselves through fraudulent means."

According to court documents, Done Global Inc., a California company, allegedly identified itself as a "digital health company," which operated on a subscription-based model where individuals paid a monthly fee. Done Global advertised that it provided online diagnosis, treatment, and refills of medication for attention deficit hyperactivity disorder (ADHD). As alleged, Done Global and Mindful Mental Wellness P.A. (MMW), a Florida company, allegedly conspired with others to provide easy access to over 40 million pills of Adderall and other stimulants in exchange for payment of the monthly subscription fee. The indictment alleges that the conspiracy's purpose was for the defendants to unlawfully enrich themselves by, among other things, instructing Done prescribers to prescribe Adderall and other stimulants without any legitimate medical purpose, thereby increasing monthly subscription revenue and increasing the value of Done Global. Done Global allegedly arranged for the prescription of over 40 million pills of Adderall and other stimulants and obtained over \$100 million in revenue.

The founder and CEO of Done Global, Ruthia He, and Done Global's former clinical president, David Brody, were [previously convicted](#) of conspiracy to distribute controlled substances, four counts of distribution of controlled substances and conspiracy to commit health care fraud. Ruthia He was also convicted of conspiracy to obstruct justice.

According to court documents, Done Global identified itself as a "digital health company," which operated on a subscription-based model where individuals paid a monthly fee. Done Global advertised that it provided online diagnosis, treatment and refills of medication for ADHD. Done Global and MMW allegedly conspired to provide Done members with prescriptions for Adderall and other stimulants that were not issued for a legitimate medical purpose in the usual course of professional practice. Done Global and MMW allegedly ordered Adderall and other stimulants for Done members, including

Medicare and Medicaid beneficiaries and commercial insurers members, with whom they lacked a pre-existing practitioner-patient relationship, without an examination, and sometimes based solely on a short video or audio communication and limited patient intake documents, or without any video or audio communication at all. Done Global, MMW, and others, allegedly agreed to provide few, if any, medical treatment options besides prescribing Adderall and other stimulants. In some cases, Done members: (a) did not meet the Diagnostic and Statistical Manual of Mental Disorders (DSM)-V criteria for diagnosing ADHD; (b) posed a risk of diversion; and (c) in the event such medications were necessary, were provided dosages, directions, combinations or quantities of medications beyond any legitimate medical purpose, and without following the usual course of professional practice for prescribing them.

Done Global and MMW also allegedly enabled Done members to obtain Adderall and other stimulants from pharmacies by defrauding pharmacies and Medicare, Medicaid, and the commercial insurers, concealing and disguising the unlawful prescription of Adderall and other stimulants. Done Global also allegedly conspired to submit false and fraudulent claims to Medicare, Medicaid, and the commercial insurers.

By 2023, certain pharmacies allegedly refused to fill prescriptions written by prescribers retained by Done Health, a California Company that was affiliated with Done Global and purportedly owned by Brody. According to the indictment, Done Global incorporated MMW to circumvent the pharmacies that had blocked the filling of Done Global-affiliated prescriptions.

Done Global also allegedly conspired to alter, destroy, and conceal records after receiving a grand jury subpoena.

Done Global is charged with one count of conspiracy to illegally distribute Adderall, four counts of illegal distribution of Adderall, conspiracy to commit health care fraud, and conspiracy to obstruct justice. If convicted, Done Global faces a maximum penalty for conspiracy and illegal distribution of Adderall of twice the gross profits or other proceeds; and twice the gain or twice the gross loss for conspiracy to commit health care fraud and obstruction. If convicted, MMW faces a maximum penalty for conspiracy to illegally distribute Adderall of twice the gross profits or other proceeds.

Acting Deputy Chief Jacob Foster, Assistant Chief Emily Gurskis and Trial Attorney Jil Simon of the Criminal Division's Fraud Section and Assistant U.S. Attorney Kristina Green for the Northern District of California are prosecuting the case.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, comprised of nine strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than \$30 billion. In addition, the Centers for Medicare & Medicaid Services, working in conjunction with the Office of the Inspector General for the Department of Health and Human Services, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

An indictment is merely an allegation. All defendants are presumed innocent until proven guilty beyond a reasonable doubt in a court of law.

Finding a New Provider

Patients receiving treatment at this practice may contact their insurance carrier for assistance in identifying a new provider for continued care. Individuals seeking access to a new primary care provider or other services can also find a provider through <https://findahealthcenter.hrsa.gov/>.

Crisis Support

Patients experiencing a mental health or substance use crisis can contact the 988 Suicide and Crisis Lifeline for 24/7 support. Trained counselors provide confidential, judgment-free assistance.

Additional Information

The Department of Justice and its law enforcement partners are working with public health and behavioral health partners to communicate where patients can find appropriate care and to alert them of potential risks associated with obtaining medications outside legal channels. Patients seeking further information on where to obtain care can refer to the CDC Health Advisory on a related action from June 13, 2024. [Health Alert Network \(HAN\) - 00510 | Disrupted Access to Prescription Stimulant Medications Could Increase Risk of Injury and Overdose](#).

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Topic

HEALTHCARE FRAUD

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